

mutuality, requiring Plaintiff to arbitrate claims against individuals affiliated with Defendant who are not obligated to arbitrate claims against him.

Severance:

Any provision of the agreement that is deemed unconscionable may be severed to preserve the enforceability of the remainder of the Arbitration Agreement. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal. 4th 83, 124). “[I]f the contract contains a severance clause, the court should take it into account as an expression of the parties’ intent that an agreement curable by removing defective terms should otherwise be enforced.” (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 517.) Here, the AA provides: “If any term or provision or any portion of this Agreement is deemed invalid or unenforceable, it shall be severed and the remainder of this Agreement shall be enforceable.” (Dec. Cascia ¶ 10, Ex. “A”, ¶ 9 [p. 9 of 24.]) As indicated above, there is a moderate degree of substantive unconscionability, which can be cured by severance or restriction. The provision requiring arbitration of claims against others can be restricted to claims against them in their capacity as agents or employees of the Company and arising out of the employment relationship between Plaintiff and the Company.

Defendant’s Request for Judicial Notice GRANTED.

Defendant’s Evidentiary Objections to Declaration of Montrell Brown the court DECLINES to RULE.

Defendant’s Motion to Compel Arbitration GRANTED with modification.

The provision requiring arbitration of claims against others is restricted to claims against them in their capacity as agents or employees of Defendant and arising out of the employment relationship between Plaintiff and Defendant.

Case stayed pending completion of arbitration.

Status hearing re arbitration is set for 2.18.27.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2605426	BURRTEC WASTE AND RECYCLING SERVICES LLC VS HERITAGE HAULING LLC	MOTION FOR PRELIMINARY INJUNCTION BY BURRTEC WASTE AND RECYCLING SERVICES LLC

Tentative Ruling: The purpose of a preliminary injunction is to preserve the status quo pending trial on the merits. In order to issue a preliminary injunction, the Court must balance the parties’ interests. In balancing the parties’ interests, the Court must exercise discretion “in favor of the party most likely to be injured . . .” (*Robbins v. Superior Court* (1985) 38 Cal.3d 199, 205.) The Court is to consider two interrelated factors: (1) the injury to plaintiff in absence of the injunction verses the injury the defendant is likely to suffer if an injunction is issued; and (2) is there a reasonable probability that plaintiffs will prevail on the merits at trial. (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 633; *Robbins, supra*, 38 Cal.3d at 206.) “The trial court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing

on one, the less must be shown on the other to support an injunction.” (*Butt v. State of California* (1992) 4 Cal.4th 668, 678.) It is the plaintiff’s burden to “show all elements necessary to support issuance of a preliminary injunction.” (*O’Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.) “An injunction properly issues only where the right to be protected is clear, injury is impending and so immediately likely as only to be avoided by issuance of the injunction.” (*E. Bay Mun. Util. Dist. v. Cali. Dep’t of Forestry & Fire Prot.* (1996) 43 Cal.App.4th 1113, 1126.) “[I]n order to obtain injunctive relief the plaintiff must ordinarily show that the defendant’s wrongful acts threaten to cause irreparable injuries, ones that cannot be adequately compensated in damages.” (*Intel Corp. v. Hamidi* (2003) 30 Cal.4th 1342, 1352.)

Plaintiff has the burden to establish it is entitled to injunctive relief. It has failed to meet this burden. Only a declaration is submitted in support of this motion. This declaration only authenticates a letter sent by Plaintiff’s counsel to Defendant. This letter does not establish any of the wrongful conduct alleged in the motion.

Plaintiff’s complaint is verified. A verified complaint can be used as evidence in a motion for preliminary injunction. (CCP § 527(c)(1).) However, the allegations in the complaint regarding Defendant are either made on “information and belief” or are conclusory assertions with no factual basis provided. (Complaint, ¶¶ 25-28, 30, and 34 (based on information and belief) and ¶¶ 33, 40-43, 47-50, 55, 56, 60, 65, and 69-70 (conclusory assertions with no factual basis provided).) Allegations based on information and belief in a verified complaint cannot support a preliminary injunction. (*Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146, 150 f. 2.) A verified complaint can only be sufficient to support a preliminary injunction, if it contains sufficient evidentiary facts to support the application. (See *Bank of America National Trust & Savings Ass’n v. Williams* (1948) 89 Cal.App.2d 21, 29.) The verified complaint does not contain evidentiary facts like when the alleged conduct occurred, where it occurred, how many times it occurred, or how Plaintiff knows that it occurred. It only contains conclusory allegations. As such, the verified complaint is not sufficient for Plaintiff to meet its burden.

The motion also fails to specifically address any of the causes of action alleged in the complaint. No necessary elements are addressed, and no analysis is done regarding these claims. Plaintiff only addresses the municipal code sections it contends that Defendant has allegedly breached. This analysis would at most address only the fifth cause of action asserted in the complaint.

Additionally, the conduct at issue is conduct that could be adequately compensated with monetary damages. Plaintiff is alleging that Defendant is providing waste removal services in violation of Plaintiff’s franchise agreements with the Cities. There are no allegations that Defendant has caused these franchise agreements to be revoked or canceled by the Cities. As such, any business Defendant is improperly doing in the Cities is something that Plaintiff could be adequately compensated for with monetary damages.

Plaintiff’s Motion for Preliminary Injunction DENIED.

Case Management Conference confirmed for 1.11.27.